

9. 9:00 AM CASE NUMBER: L25-13609
CASE NAME: AFSHIN SHAHIDI VS. ALLIED PLUMBING & FIRE SUPPLY
HEARING IN RE: PETITION FOR RELEASE OF PROPERTY LIEN
FILED BY:
TENTATIVE RULING:

Background

Plaintiff filed, on December 22, 2025, a Petition for the Release of a Property Lien. The hearing was scheduled for January 27, 2026.

The Petition is unopposed; however, there is no proof that Plaintiff has served the Defendant with a copy of the Complaint.

Disposition

Hearing will be continued for 60 days for Plaintiff to serve Defendant.

Plaintiff to file Order.

Courtroom Clerk's Session
Add On

10. 9:00 AM CASE NUMBER: MS25-0971
CASE NAME: POETS PROPERTIES, LLC VS. SHANNON WILSON
***DEMURRER / MOTION TO STRIKE HEARING**
FILED BY:
TENTATIVE RULING:

Background

Defendant filed its Demurrer, on January 2, 2026, to the Complaint of Unlawful Detainer, filed on November 12, 2025. The matter was set for hearing on January 27, 2026.

Defendant alleges that Plaintiff fails to state a cause of action and then contends that Plaintiff has not complied with the "Ellis Act," which appears to have been codified in sections 7060 through 7060.6 of the California Government Code.

It is unclear what the Defendant's particular argument is with respect to these statutes, but

Defendant appears to argue either that the rental unit at issue has not been removed from the rental market, or that not all units have been removed from the rental market.

This court will address both arguments, as well as the general argument of a Demurrer that the Complaint fails, generally, to state a cause of action.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

In addition, complaints in unlawful detainer matters must meet additional requirements. Such a complaint must demonstrate the method of service of the notice of termination; it must contain attachments such as the notice of termination, as well as a copy of the lease or rental agreement. The complaint must also be verified. *See* Section 1166 of the Code of Civil Procedure.

Section 1946.2 of the California Civil Code permits an owner of residential property to terminate a tenancy of more than 12 months for just cause and provided the owner. The withdrawal of residential property from the rental market, under Section 1946.2(b)(2)(B), qualifies as just cause. The just cause must be stated in the written notice to terminate tenancy.

Sections 7060 through 7060.7 of the California Government Code, allow a defendant to demur or provide an affirmative defense with respect to any violations of these particular statutes. Yet the only statute that may be at issue here is Section 7060.7(b), which suggests the spirit of these statutes is not to permit any landlord to withdraw from the rental market less than half of all units in a single, detached structure.

Plaintiff's Complaint satisfies all service, notice and verification requirements in Section 1166 of the Code of Civil Procedure. In addition, the Complaint lists the reason for the termination - removal of the residence from the rental market- which qualifies as just cause. The Complaint then alleges that Defendant failed to vacate the premises after proper notice of 60 days and despite the fact that the owner waived the Defendant's rent for the last month.

This court doesn't interpret Section 7060.7 of the Government Code to require that an owner, when removing a unit from the rental market, must remove at least half of those units from a particular building. Even assuming that were the case, the residence identified in the Complaint is a single residence. No showing that any further units have been removed would be required.

Thus, the court has considered and rejects the contention that the operative complaint fails to allege adequate compliance with statutory notice requirements. The operative complaint alleges facts from which a trier of fact could find valid service and compliance with statutory notice requirements applicable to an unlawful detainer cause of action for non-payment of rent. See Complaint filed February 14, 2024, ¶¶VII-VIII an

Disposition

Defendant's Demurrer is Overruled.

Court to issue Order.